

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ariel Courage	Team: Team # 5	CCRB Case #: 201304366	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/14/2013 10:00 PM	Location of Incident: Elton Street and Cozine Avenue	18 Mo. SOL 11/14/2014	Precinct: 75		
Date/Time CV Reported Wed, 05/15/2013 10:08 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/21/2013 4:08 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SSA Gary Calhoun	00622	903537	075 PCT
2. POF Jean Fiorello	17886	945720	075 PCT
3. POM Jose Sandoval	02243	940704	075 PCT
4. POM Kelvin Peralta	06980	940561	075 PCT
5. POM Joseph Nicosia	02777	949395	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Francesco Allevato	02939	948608	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joseph Nicosia	Abuse: PO Joseph Nicosia stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Substantiated
B . POM Kelvin Peralta	Abuse: PO Kelvin Peralta stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Substantiated
C . POM Joseph Nicosia	Force: PO Joseph Nicosia pointed his gun at § 87(2)(b)	C . Unsubstantiated
D . POM Kelvin Peralta	Force: PO Kelvin Peralta pointed his gun at § 87(2)(b)	D . Unsubstantiated
E . POM Joseph Nicosia	Abuse: PO Joseph Nicosia threatened to damage § 87(2)(b)'s property.	E . Unsubstantiated
F . POM Joseph Nicosia	Discourtesy: PO Joseph Nicosia acted rudely toward § 87(2)(b)	F . Unsubstantiated
G . POM Joseph Nicosia	Abuse: PO Joseph Nicosia searched § 87(2)(b)	G . Substantiated
H . SSA Gary Calhoun	Abuse: SSA Gary Calhoun supervised the search of the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	H . Unsubstantiated
§ 87(2)(g), § 87(4-b)		

Officer(s)	Allegation	Investigator Recommendation
§ 87(2)(g), § 87(4-b)		

Case Summary

On May 15, 2013, § 87(2)(b) Sr. called IAB to file a complaint on behalf of his son, § 87(2)(b). On May 21, 2013, the complaint was referred to the CCRB. On May 14, 2013, in the vicinity of Elton Street and Cozine Avenue in Brooklyn, PO Joseph Nicosia and PO Kelvin Peralta stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants. The following allegations resulted:

Allegation A – Abuse of Authority: PO Joseph Nicosia stopped the vehicle in which

§ 87(2)(b) and § 87(2)(b) were occupants.

Allegation B – Abuse of Authority: PO Kelvin Peralta stopped the vehicle in which

§ 87(2)(b) and § 87(2)(b) were occupants.

Allegation G – Abuse of Authority: PO Joseph Nicosia searched § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegations A, B, and G** be closed as **Substantiated**.

Allegation C – Force: PO Kelvin Peralta pointed his gun at § 87(2)(b)

Allegation D – Force: PO Joseph Nicosia pointed his gun at § 87(2)(b)

Allegation E – Abuse of Authority: PO Joseph Nicosia threatened to damage

§ 87(2)(b)'s property.

Allegation F – Discourtesy: PO Joseph Nicosia acted rudely towards § 87(2)(b)

Allegation H – Abuse of Authority: SSA Gary Calhoun searched the vehicle in which

§ 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(g)

, it is recommended that **Allegations C, D, E, F, and H** be closed as **Unsubstantiated**.

§ 87(2)(g), § 87(4-b)

Results of Investigation

Civilian Statements

Victim: § 87(2)(b)

- At the time of this incident, § 87(2)(b) was § 87(2)(b). § 87(2)(b) is a black man, § 87(2)(b), with brown hair and eyes. § 87(2)(b)

CCRB Statements

§ 87(2)(b) made statements regarding this incident to the CCRB via telephone on May 28 (encl. [4J]), in-person on May 30, 2013 (encl. [4K-T]), by telephone on June 18, 2013 (encl. [4U]), and again by telephone on February 19, 2014 (encl. [4AE]). § 87(2)(g)

On May 14, 2013, at 10 p.m., § 87(2)(b) was driving a vehicle registered in his mother's name, a 2002 silver-colored Nissan Altima, license plate number § 87(2)(b). The windows of the vehicle are not tinted. § 87(2)(b) was driving three friends to his house. § 87(2)(b) sat in the front passenger seat, § 87(2)(b) sat in the backseat on the driver side, and § 87(2)(b) sat in the backseat on the passenger side. As § 87(2)(b) made a left from Cozine Avenue onto Elton Street, an unmarked police vehicle turned on its lights behind him. § 87(2)(b) denied criminality or committing a traffic infraction. He pulled over immediately and told his friends to keep their hands visible to the officers, which they all did. § 87(2)(b) described the intersection as well-lit by streetlamps and nearby residences.

There were two plainclothes officers in the police vehicle. One, an Indian or Guyanese man, 5'10" tall, 230 to 240 pounds, late 30s or 40s, with black hair, identified via investigation as PO Joseph Nicosia, exited the driver side of the police vehicle and approached the driver side of the civilian vehicle. The second, a Hispanic man, 5'10" tall, 200 to 210 pounds, 30s, with dark hair, identified via investigation as PO Kelvin Peralta, exited the passenger side of the police vehicle, and approached the passenger side of the civilian vehicle.

PO Nicosia shined his flashlight into the vehicle and screamed, "Cut off the engine." § 87(2)(b) complied. PO Nicosia said, "Get out of the car." § 87(2)(b) asked why he was stopped. § 87(2)(b) was afraid because PO Nicosia was aggressive, rolled up his window so that it was 70% closed. He removed his seatbelt and took his cell phone out of his shirt pocket with his left hand. § 87(2)(b) did not reach under the seat or make any other movements throughout the incident, nor did the passengers. § 87(2)(b) displayed the cell phone to PO Nicosia, told him he was nervous and did not want to get out of the vehicle, and was going to call his parents. § 87(2)(b) called them but did not reach them. PO Nicosia said, "You don't want to get out? We'll get you out." PO Nicosia went to his vehicle and returned holding a gun, the butt of which he used to strike the window eight times in rapid succession. The window was not damaged (in his telephone statement, § 87(2)(b) stated that the window was scratched, but the scratches "went away after [he] took the vehicle to the wash"). § 87(2)(b) rolled down his window. PO Nicosia reached into the vehicle, unlocked and opened the door, snatched § 87(2)(b)'s cell phone from his hand, and tossed it across the dashboard, causing small chips to the phone which he characterized as minor. Pictures of his cell phone were taken at the CCRB on the date of his in-person statement (encl. [P-Q]).

PO Nicosia grabbed § 87(2)(b) by the front of his shirt to pull him out and walked him to the trunk (in his telephone statement, § 87(2)(b) stated that he eventually got out of his

own accord). An estimated 15 additional officers arrived, one of whom was a white male, late 50s, white or gray hair, and slightly heavyset. § 87(2)(b) obtained the name of this officer, SSA Gary Calhoun. There was a Hispanic female officer, whose name § 87(2)(b) read from her uniform as “Figueroa,” and who was identified by the investigation as PO Jean Fiorello.

PO Nicosia searched § 87(2)(b) s pants pockets, removing his wallet (encl. [4R]) and a pair of headphones, without ever frisking him. PO Nicosia checked § 87(2)(b) s identification, though § 87(2)(b) did not recall how he obtained it. All other civilians exited the vehicle at the officer’s orders. PO Fiorello handcuffed § 87(2)(b) possibly because of his large build.

PO Nicosia searched § 87(2)(b) s vehicle. § 87(2)(b) was unable to see his vehicle for the entirety of the search, which he estimated lasted 25 minutes, as he stood facing away from the vehicle at its trunk. An unidentified officer requested a knife to pop a pill out of the driver’s side arm rest. § 87(2)(b) turned his head and saw PO Nicosia using the knife to remove it. § 87(2)(b) told officers it was an Ibuprofen pill. § 87(2)(b) assumed officers confirmed it was such, as no one was arrested. § 87(2)(b) saw a plainclothes white male officer, 6’3” tall, 260 pounds, 40 years old, with muscular build, enter the rear driver’s side door and search the sleeves on the back of the driver and passenger seats. (This officer remains unidentified.) § 87(2)(b) was otherwise unable to tell which officers searched where. When he returned to his vehicle he saw that items formerly contained in the glove compartment, arm rest, and cup holders of the center console were scattered around. All civilians were released without summonses.

A man and a woman who lived near Cozine Avenue and Elton Street may have witnessed the incident. § 87(2)(b) was not able to provide identifying information for these individuals, and did not provide a picture of his vehicle as requested.

Photo Viewing (encl. [4V-AD])

§ 87(2)(b) appeared for a photo viewing on October 16, 2013. When presented with single color photographs of PO Joseph Nicosia, PO Jean Fiorello, PO Jose Sandoval, PO Kelvin Morgan, PO Kelvin Peralta, PO Francesco Allevato, PO Kamil Pac, and PO William Schumacher, all of the 75th Precinct, § 87(2)(b) was unable to identify any officers.

Victim: § 87(2)(b)

- *At the time of this incident, § 87(2)(b) was § 87(2)(b). § 87(2)(b) a black woman, is § 87(2)(b) s friend.*

CCRB Statement

§ 87(2)(b) provided a telephone statement on May 31, 2013 (encl. [4AF]). § 87(2)(g) § 87(2)(b) had not committed any traffic infraction. PO Nicosia, described as a light-skinned Hispanic man, 5’0” tall, in his early 30s, with a slim build, asked § 87(2)(b) to roll down his window. § 87(2)(b) opened the window slightly and asked, “Why am I being pulled over?” PO Nicosia told § 87(2)(b) “Open the fucking door,” and, “I’ll break your fucking window,” and repeatedly struck the window and door of his vehicle with a gun, causing scratches. PO Peralta, described as a black man, 5’9” tall, mid-thirties, with muscular build and either bald or with extremely short hair, had his firearm drawn.

PO Nicosia unlocked and opened the door and pulled § 87(2)(b) out by his shirt. All other occupants exited. Additional officers arrived. PO Nicosia searched § 87(2)(b) s pants pockets. PO Peralta handcuffed § 87(2)(b) and searched him. PO Fiorello frisked § 87(2)(b) and

asked her why § 87(2)(b) did not open his window. When § 87(2)(b) said she didn't know, PO Fiorello replied, "So he was just being an asshole."

§ 87(2)(b) saw an officer, described as a white man, 5'11" tall, with graying blond hair, heavyset, 50s or 60s, and in uniform, whose name § 87(2)(b) told § 87(2)(b) was SSA Calhoun, standing by the open driver's side door and asking for a knife to remove an Ibuprofen pill from the pocket of the door. § 87(2)(b) never saw officers inside the vehicle, but knew that items that had been in the glove compartment were removed and scattered around the vehicle.

Victim: § 87(2)(b)

- *At the time of this incident, § 87(2)(b) was § 87(2)(b). § 87(2)(b) a black man, is § 87(2)(b)'s friend.*

CCRB Statement

§ 87(2)(b) provided a telephone statement on June 3, 2013 (encl. [4AG-H]). § 87(2)(g). There were three officers initially on scene, one of whom was a Hispanic man, 5'6" to 5'7" tall, 25 to 35 years old, 165 to 170 pounds, with black hair, who approached the driver side and was identified by the investigation as PO Nicosia. Another officer, a 5'11" tall male, approached the passenger side and was identified by the investigation as PO Peralta. A petite uniformed Hispanic female, identified by the investigation as PO Fiorello, approached the passenger side. § 87(2)(b) did not commit any violations. PO Nicosia and PO Peralta drew and pointed their guns at § 87(2)(b)'s vehicle. PO Fiorello held a flashlight. PO Nicosia said, "Get the fuck out. Step out of the fucking vehicle," three or four times, and struck the driver's side door and window with his gun five or six times, causing small scratches to the vehicle.

When additional officers arrived, an officer approached the vehicle and identified himself as SSA Calhoun, which § 87(2)(b) was also able to read from his uniform. PO Nicosia reached through the window to unlock the door. SSA Calhoun unbuckled § 87(2)(b). PO Nicosia removed § 87(2)(b) from the vehicle by gripping his throat for one to two seconds. § 87(2)(b) had no indication that § 87(2)(b)'s breathing was restricted. Once all civilians exited the vehicle at officer's orders, PO Fiorello handcuffed § 87(2)(b) stating that his size constituted a safety threat. § 87(2)(b) was not frisked or searched and did not know if any other civilians were.

SSA Calhoun entered the vehicle through the driver's side, and also told all civilians to sit at the back of § 87(2)(b) vehicle, facing away from the car. The civilians consequently did not see how the vehicle was searched. The glove compartment, all four door pockets, the console, the visors, and underneath the seats, appeared to be disturbed when they returned to the vehicle.

Victim: § 87(2)(b)

- *At the time of this incident, § 87(2)(b) was § 87(2)(b). § 87(2)(b) a black man, is § 87(2)(b)'s friend.*

CCRB Statement

§ 87(2)(b) provided a telephone statement on June 3, 2013 (encl. [4AI]). § 87(2)(g). § 87(2)(b) did not believe § 87(2)(b) committed any traffic infractions. The officer who approached the driver side, PO Nicosia, was described as a Hispanic man, 5'5" to 5'6", in his mid-thirties, with average build and black hair. The officer on the passenger side, PO Peralta, was described as a white man, 29 years old, 5'4" tall, with average build. PO Nicosia said four or five times, "Turn off your car

and come out.” When § 87(2)(b) refused, PO Nicosia said, “I’m going to crack your window,” and struck it with his elbows and fists two or three times, causing no damage.

When § 87(2)(b) eventually rolled down his window, PO Nicosia reached inside and struck him on the side of his head two or three times. § 87(2)(b) then exited the vehicle of his own accord. A third officer, described by § 87(2)(b) as a petite woman, and who was identified by the investigation as PO Fiorello, approached and told § 87(2)(b) “I have to search you.” § 87(2)(b) said, “Okay.” PO Fiorello frisked § 87(2)(b) and ordered him to remove all items from his pockets, which he did. § 87(2)(b) did not recall which officer handcuffed him. § 87(2)(b) thought “everybody” was either frisked, searched, or both, though he did not know which officers did what to whom. A male officer searched the front door panels and backseat of the vehicle [it was difficult to hear § 87(2)(b) during the phone call, and despite repeated questioning, it was unclear to which officer this referred]. § 87(2)(b) did not recall if any other officer searched it. SSA Calhoun told § 87(2)(b) “You say that word again I’ll put you in handcuffs.”

Civilians Not Interviewed

§ 87(2)(g)

NYPD Statements:

Subject Officer: PO JOSEPH NICOSIA

- *At the time of the incident, PO Nicosia was § 87(2)(b). PO Nicosia is a white man, § 87(2)(b) with brown hair and blue eyes.*
- *PO Nicosia is an officer of the 75th Precinct. On May 14, 2013, PO Nicosia was assigned to Street Narcotics Enforcement Unit with PO Peralta from 3 p.m. to 11:35 p.m. PO Nicosia was in plainclothes and was the operator of unmarked vehicle number 752, a blue Crown Victoria.*

Memo Book (encl. [5A-B])

In listing his assignment for the day, PO Nicosia noted that he was the operator of the police vehicle. There were no entries pertaining to this incident.

CCRB Statement

PO Nicosia was interviewed at the CCRB on September 4, 2013 (encl. [5C-G]). While stopped at an unknown intersection four blocks away from Cozine Avenue and Elton Street, PO Nicosia observed § 87(2)(b) speeding westbound on Cozine Avenue. PO Nicosia had to speed up to 60 miles per hour to catch up to § 87(2)(b). The speed limit, which is not posted, is 25 to 30 miles per hour. PO Nicosia saw four occupants in the vehicle, but did not make any other observations. When PO Nicosia pulled over § 87(2)(b) his intent was not to issue him a summons, but to check that his vehicle was not stolen. Besides the fact that the area is industrial with a high incidence of vehicle break-ins, PO Nicosia did not have any reason to believe the vehicle was stolen. If able to verify that the vehicle was not stolen, PO Nicosia planned to warn § 87(2)(b) about his speeding.

Once § 87(2)(b) pulled over, PO Nicosia approached the driver side window, which was closed. PO Peralta approached the passenger side. As he approached, PO Nicosia saw § 87(2)(b) was “real fidgety” with his hands, was “bouncing,” and generally “moving around.” When asked to clarify, PO Nicosia indicated that § 87(2)(b) continuously moved his hands so that they were not visible. When PO Nicosia was approximately four feet away from the window,

he saw § 87(2)(b) had an object in his right hand. PO Nicosia was unable to tell what the object was and could not describe its shape, but saw it was metallic, silver, and slightly larger than § 87(2)(b)'s hand. PO Nicosia thought this object may have been a gun or other weapon, and therefore drew his gun and pointed it at § 87(2)(b). PO Nicosia saw § 87(2)(b) throw the object under the seat and reach both hands under the seat three times, leading him to believe he was reaching for a weapon. PO Nicosia and PO Peralta ordered at least three times, "Roll your windows down. Put the vehicle in park. Shut it off. Show your hands," which § 87(2)(b) did not acknowledge. The passengers sat still with their hands visible.

PO Nicosia requested additional units. Within two minutes, the rest of the SNEU team arrived, including PO Fiorello and SSA Calhoun. In that two-minute period, PO Nicosia watched § 87(2)(b) who made no further movements or statements, from a distance of four feet. Once additional units arrived, § 87(2)(b) became compliant, opening his window, providing his identification, and placing his hands on the steering wheel. When PO Nicosia approached to check his identification, he no longer saw the aforementioned object. PO Nicosia ordered § 87(2)(b) to get out. § 87(2)(b) and all other civilians complied. PO Nicosia frisked § 87(2)(b) for weapons by patting around his waistband area. Nothing was recovered. § 87(2)(b) was not searched. PO Nicosia did not recall if other civilians were frisked or searched.

Once the civilians were standing at the rear bumper, PO Nicosia searched the vehicle to "see what the object was that he was throwing underneath...the seat." PO Nicosia entered through the open driver side door and looked beneath the driver seat, whence he recovered a circular, metal marijuana grinder. PO Nicosia assumed it was the same object observed in § 87(2)(b)'s hand, but was uncertain. Nothing else was recovered. PO Nicosia did not recall any further search, but was sure that "everything," by which he meant the "lunge-able, grab-able areas," such as the center console, was searched. PO Nicosia did not open closed containers. PO Peralta searched the vehicle, though PO Nicosia did not recall where. PO Nicosia did not recall recovering a pill, or if § 87(2)(b) reached for or used a cell phone.

PO Nicosia warned and admonished § 87(2)(b) because the grinder was not serious, or an offense for which he could be arrested. PO Nicosia initially said that he did not discuss the decision to warn and admonish § 87(2)(b) with SSA Calhoun. PO Nicosia later said that SSA Calhoun agreed with his decision to warn and admonish him. PO Nicosia denied using profanity during this incident, acting rudely towards § 87(2)(b) threatening to damage his property, or hearing any officer do so. No documentation was prepared regarding this incident.

Subject Officer: PO KELVIN PERALTA

- *At the time of the incident, PO Peralta was § 87(2)(b). PO Peralta is a Hispanic man, § 87(2)(b) with black hair and brown eyes.*
- *PO Peralta is an officer of the 75th Precinct. On May 14, 2013, PO Peralta worked from 3 p.m. until 11:35 p.m. PO Peralta was assigned to Street Narcotics Enforcement Unit with PO Nicosia. PO Peralta was in plainclothes and was assigned to unmarked vehicle 752.*

Memo Book (encl. [5H-I])

No entries.

CCRB Statement (encl. [5J-N])

PO Peralta was interviewed at the CCRB on August 22, 2013. § 87(2)(g) PO Peralta believed that he was the operator of the vehicle on this date. PO Peralta observed § 87(2)(b) fail to signal a left turn on Elton Street. PO Peralta thought § 87(2)(b) took the turn too fast because he heard tires screech. PO Peralta was unable to tell whether § 87(2)(b) went faster or slower than the 30-

mile-per-hour speed limit. PO Peralta intended to warn § 87(2)(b) about his driving and get him to slow down: “school’s not in at this time, but there’s definitely kids out.”

When PO Peralta turned on his lights and sirens, § 87(2)(b) decreased his speed but did not pull over for “at least a block.” This led PO Peralta to suspect that the vehicle was stolen, which in turn made him fear for his own safety. PO Peralta had no other reason to suspect this, and did not recall where § 87(2)(b) ultimately pulled over.

PO Peralta approached § 87(2)(b)’s driver window, which was closed, and asked him more than five times for his license, registration, and insurance information, which he refused to provide. As PO Peralta approached, he saw § 87(2)(b) holding an object that he could not describe because he saw it only briefly. PO Peralta thought § 87(2)(b) either attempted to place or remove an object from beneath the driver seat by tucking his body down and placing both of his hands out of sight. § 87(2)(b) also “kept moving around...looking at me and cursing.” PO Peralta feared the aforementioned object was a weapon because § 87(2)(b) was not compliant. PO Peralta ordered § 87(2)(b) to show his hands more than five times. § 87(2)(b) raised his voice and said, “No, I don’t have to...fuck you.”

Because PO Peralta feared for his safety, he drew his gun and pointed it at § 87(2)(b) and again ordered him to show his hands. § 87(2)(b) again refused. The occupants in the backseat were talking and “moving around a lot,” by reaching to the floor of the vehicle more than once, which led him to fear they were “trying to hide something or get something out.” PO Peralta ordered all occupants to put their hands up. All except § 87(2)(b) complied. Once § 87(2)(b) eventually complied, PO Peralta holstered his gun. § 87(2)(b) rolled down his window slightly and said, “I don’t have to give you anything. Why are you pulling me over?” § 87(2)(b) exited his vehicle of his own accord. PO Peralta escorted him to the rear bumper. PO Peralta did not remember frisking or searching him.

PO Peralta returned to the driver seat and looked beneath it, where he found a grinder containing marijuana residue. PO Peralta looked on the front passenger seat and the backseat. PO Peralta did not remember if any other officer searched the vehicle. PO Peralta did not open any closed containers, and estimated that his search lasted less than five minutes. When PO Peralta showed this grinder to § 87(2)(b) he apologized, saying, “I’m very sorry...I was afraid I was going to go to jail.” PO Peralta discussed the grinder with SSA Calhoun, and suggested they warn § 87(2)(b). SSA Calhoun agreed. PO Peralta denied using profanity during this incident, acting rudely towards § 87(2)(b) threatening to damage his property, or hearing any officer do so.

Subject Officer: PO JEAN FIORELLO

- *At the time of this incident, PO Fiorello was § 87(2)(b). PO Fiorello is a Hispanic woman, § 87(2)(b), with black hair and brown eyes.*
- *PO Fiorello is an officer of the 75th Precinct. On May 14, 2013, PO Fiorello worked from 3 p.m. until 11:35 p.m. PO Fiorello was assigned to Street Narcotics Enforcement Unit with SSA Calhoun. PO Fiorello was in uniform and was assigned to marked van 8828.*

Memo Book (encl. [5O-P])

No entries.

CCRB Statement (encl. [5Q-T])

PO Fiorello was interviewed at the CCRB on August 13, 2013. § 87(2)(g)

When PO Fiorello responded to a point-to-point radio communication requesting additional units, she approached the civilian vehicle on its passenger side, where PO Peralta was.

Another officer who was identified by the investigation as PO Nicosia stood on the driver side. SSA Calhoun approached the rear driver door. The windows of the vehicle were tinted, though PO Fiorello did not recall which windows and did not estimate the tint level. PO Fiorello heard an unknown officer say, “Roll down your windows. Open your doors,” a few times. The civilians did not respond. The occupants were moving around “a lot” by reaching under the seats. PO Fiorello did not see any objects, did not see which occupants were reaching, and did not know what they were doing, stating only that there was “way too much movement.”

Eventually the civilians exited the vehicle of their own accord. All were escorted to the rear bumper of the vehicle. Some were frisked. PO Fiorello did not recall which civilians were frisked, or which officers conducted the frisks. PO Fiorello did not remember if she frisked anyone. The civilians were frisked for weapons, which PO Fiorello thought they had because they moved around in the vehicle and reached under the seat and because they were not compliant with officers. PO Fiorello did not know if anyone was searched.

From where she stood at the rear of the vehicle, PO Fiorello saw an officer whose identity she did not recall enter the vehicle. PO Fiorello did not remember through which door the officer entered the vehicle. This officer searched under the seats, though PO Fiorello did not recall which seats, because the occupants of the vehicle were observed reaching under the seats. PO Fiorello did not remember if any other officer also searched the vehicle. PO Fiorello did not see any officer search any closed compartments. PO Fiorello did not herself search the vehicle. PO Fiorello did not recall if any items were recovered from the search. PO Fiorello denied using profanity during this incident, acting rudely towards § 87(2)(b) threatening to damage his property, or hearing any officer do so.

Subject Officer: SSA GARY CALHOUN

- *At the time of this incident, SSA Calhoun was § 87(2)(b) SSA Calhoun is a white man, § 87(2)(b) with brown hair and blue eyes.*
- *SSA Calhoun is an officer of the 75th Precinct. At the time of the incident, SSA Calhoun was assigned to Street Narcotics Enforcement Unit with PO Fiorello, and worked from 2:50 p.m. until 11:47 p.m. SSA Calhoun was in uniform and assigned to marked van 8828.*

Memo Book (encl. [5U-W])

No entries.

CCRB Statement (encl. [5X-AA])

SSA Calhoun was interviewed at the CCRB on July 23, 2013, § 87(2)(g)

By the time SSA Calhoun arrived on scene, the incident was “wrapping up.” The civilians on scene were all inside their vehicle. A male officer who SSA Calhoun could not describe or identify was speaking with the driver of the vehicle. SSA Calhoun did not recall the topic of their conversation. SSA Calhoun did not recall speaking with any civilians or officers on scene and did not recall if he ever knew the circumstances surrounding the vehicle stop. SSA Calhoun did not search the vehicle and did not remember if any officer did. SSA Calhoun did not use profanity, act rudely, point his gun, threaten to damage property, or see any officers do so.

Subject Officer: PO JOSE SANDOVAL

Witness Officer: PO FRANCESCO ALLEVATO

- *At the time of this incident, PO Jose Sandoval was § 87(2)(b). PO Sandoval is a Hispanic man, § 87(2)(b), with black hair and brown eyes.*

- *At the time of this incident, PO Allevato was § 87(2)(b). PO Allevato is a white man, § 87(2)(b), with brown hair and hazel eyes.*
- *PO Sandoval is an officer of Narcotics Borough Queens. At the time of this incident, PO Sandoval was an officer of the 75th Precinct. On the incident date, PO Sandoval worked from 3 p.m. until 11:35 p.m., and was assigned to a Strategic Enforcement Team with PO Edward Blake. PO Sandoval was in uniform and was the operator of unmarked vehicle 8383, a blue Ford van.*
- *PO Allevato is an officer of the 75th Precinct. On the incident date, PO Allevato worked from 7 a.m. until 3:35 p.m. PO Allevato was in uniform and was not assigned a partner. PO Allevato was assigned to court at 100 Church Street. PO Allevato ended his tour as scheduled, and was not on duty at the time of this incident.*

Memo Books (encl. [5AB-AC, 5AH-AI])

No entries.

CCRB Statements

PO Sandoval was interviewed at the CCRB on December 15, 2013 (encl. [5AD-AG]). PO Allevato was interviewed at the CCRB on January 16, 2014 (encl. [5AJ-AL]). PO Sandoval responded to this incident towards its end. All windows of the vehicle were darkly tinted, but he could not estimate the tint level. The vicinity of Cozine Avenue and Elton Street is poorly lit despite streetlamps. PO Sandoval denied searching civilians or the vehicle, using profanity, acting rudely, pointing his gun, threatening to damage a civilian's property, or seeing any officer do so.

PO Allevato was interviewed in an attempt to identify the officer § 87(2)(b) saw entering the vehicle, as his pedigree information matches the provided description. Though listed on the roll call as being assigned to the SNEU team, PO Allevato was not working at the time of the incident; having completed a court assignment at 3:35 p.m. PO Allevato indicated that there was a clerical error on the roll call, and denied involvement in or knowledge of this incident.

NYPD Documents

Stop, Question and Frisk Report (encl. [6C-JD])

After a thorough check of the Stop, Question and Frisk report index for May 14, 2013, the 75th Precinct determined that no such report was prepared regarding this incident.

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of March 3, 2014, more than six months past the filing deadline, with regard to the incident (encl. [8A]).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History

This is the first CCRB complaint filed by § 87(2)(b) or Sr. (encl. [2H-I])

Subject Officers CCRB History

- PO Joseph Nicosia has been a member of the service for 3 years and there are no substantiated CCRB allegations against him (encl. [2C]).

- PO Kelvin Peralta has been a member of the service for 8 years and there are no substantiated CCRB allegations against him (encl. [2D-E]).
- SSA Gary Calhoun has been a member of the service for 20 years and there are 12 substantiated CCRB allegations against him (encl. [2A-B]):
 - In case number 9700541, allegations of push or shove, gun pointed, other force, threat of force, discourtesy, and offensive language were substantiated. The Board recommended charges and SSA Calhoun received a 30-day suspension.
 - In case number 9802616, allegations of a push or shove and arrest were substantiated. The Board recommended charges, which the NYPD dismissed.
 - In case number 200901903, allegations of a vehicle stop, vehicle search, frisk, and search of person were substantiated. The Board recommended charges and SSA Calhoun received command discipline B.
- PO Jean Fiorello has been a member of the service for 6 years and there are no substantiated CCRB allegations against her (encl. [2F]).
- PO Jose Sandoval has been a member of the service for 8 years and there are no substantiated CCRB allegations against him (encl. [2G]).

Conclusion

Identification of Subject Officers

§ 87(2)(b) described the officer who approached his driver window, struck it with a gun, snatched and damaged his cell phone, and searched him and his vehicle, as an Indian or Guyanese male, 5'10" tall, 230 to 240 pounds, late 30s or 40s, with black hair, who was the operator of the police vehicle. He described the officer who approached his passenger window as a Hispanic male, 5'10" tall, 200 to 210 pounds, 30s, with dark hair, and who was the passenger in the police vehicle. § 87(2)(g)

PO Nicosia and PO Peralta acknowledged mutually stopping the vehicle in which § 87(2)(b) and his friends were occupants. § 87(2)(g). Both PO Nicosia and PO Peralta acknowledged drawing their guns during this incident. § 87(2)(g).

Both PO Peralta and PO Nicosia stated that they operated the police vehicle on this day. Both stated they approached the driver side while their partner went to the passenger side. § 87(2)(b) was unable to identify officers in his photo viewing, including PO Peralta and PO Nicosia. However, PO Nicosia wrote in his memo book that he was the operator on the incident date, while PO Peralta had no such notation. PO Fiorello saw PO Peralta on the passenger side. PO Nicosia also acknowledged frisking § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) alleged that an officer, described as a white male, 6'3" tall, 260 pounds, 40 years old, with muscular build, and in plainclothes, participated in the search of his vehicle. The only officer matching that description on the SNEU team was PO Allevato, who was not working at the time of the incident. When presented with a photo viewing, § 87(2)(b) did not identify any officers. § 87(2)(g)

Investigative Findings and Recommendations

Allegations Not Plead

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation A – Abuse of Authority: PO Kelvin Peralta stopped the vehicle in which

§ 87(2)(b) and § 87(2)(b) were occupants.

Allegation B – Abuse of Authority: PO Joseph Nicosia stopped the vehicle in which

§ 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that PO Peralta and PO Nicosia stopped the vehicle § 87(2)(b) drove. § 87(2)(b) denied committing any traffic violation prior to being pulled over and did not know why he was stopped. § 87(2)(b) denied having tinted windows, though he did not send a picture of his vehicle to the CCRB when asked. § 87(2)(b) and § 87(2)(b) corroborated that § 87(2)(b) had not committed any infraction.

PO Peralta indicated that he observed § 87(2)(b) fail to signal while making a left turn, and thought that he was driving fast because he heard tires screech, though he did not know if he was driving over or under the speed limit. PO Nicosia indicated that he observed § 87(2)(b) driving in excess of the speed limit, and had to speed up to 60 miles per hour to catch up to him. Neither officer observed other infractions, or intended to issue him a summons. PO Nicosia wished to warn and admonish him about his infraction while checking that his vehicle was not stolen, which he suspected only because he was driving in an industrial area known for vehicle break-ins. § 87(2)(b) was compliant with pulling over. PO Peralta, on the other hand, stated that § 87(2)(b) did not pull over for at least one block, leading him to believe that the vehicle was stolen. PO Peralta had no other reason to suspect this.

Neither PO Nicosia nor PO Peralta prepared any documentation regarding this incident. While PO Fiorello and PO Sandoval indicated that § 87(2)(b)'s vehicle had tinted windows, neither could estimate the tint level. Neither PO Peralta nor PO Nicosia observed this or listed it as a factor in their decision to stop § 87(2)(b).

§ 87(2)(g)

Officers may stop a vehicle if there is probable cause of a traffic infraction. People v. Robinson, 97 N.Y.2d 341 (2001) (encl. [1A-R]) Officers may also conduct a vehicle stop if there is reasonable suspicion that the occupant has committed, is committing, or is about to commit a crime. People v. Taylor, 817 N.Y.S.2d 816 (2011 – 4th Dept.) (encl. [1S-T]) Reasonable suspicion is not established merely because a vehicle is seen in a high crime area. People v. Morrison, 161 A.D.2d 608 (1990 – 2nd Dept.) (encl. [1U])

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegations A and B** be closed as **Substantiated**.

Allegation C – Force: PO Kelvin Peralta pointed his gun at § 87(2)(b)

Allegation D – Force: PO Joseph Nicosia pointed his gun at § 87(2)(b)

Allegation E – Abuse of Authority: PO Joseph Nicosia threatened to damage

§ 87(2)(b) s property.

It is undisputed that PO Peralta and PO Nicosia drew and pointed their guns at § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) denied making movements during this incident besides removing his seat belt, rolling up his window, and retrieving his cell phone from the breast pocket of his shirt. § 87(2)(b)

§ 87(2)(b) displayed the cell phone to PO Nicosia, told him he was going to call his parents, and did so. § 87(2)(b) denied bending down, or that his hands were not visible, and described the area as being well-lit by streetlamps and nearby residences.

PO Peralta indicated that he drew his firearm and pointed it at § 87(2)(b) after he cursed, raised his voice, and refused to show his hands or provide documents. PO Nicosia stated that § 87(2)(b) did not respond to commands to show his hands, roll down his window, and shut off his vehicle, and that he only drew and pointed his weapon at § 87(2)(b) after observing him holding a metallic silver object. PO Peralta also observed the occupants of the backseat reaching to the floor of the vehicle more than once, leading him to fear that they were trying to hide or to retrieve “something.” PO Nicosia § 87(2)(g) stating that all passengers sat still with their hands up. No other officers were present at the time they pointed their guns. PO Nicosia did not recall the lighting conditions, while PO Peralta, PO Fiorello, and PO Sandoval characterized the area as dark despite streetlamps.

§ 87(2)(b) alleged that PO Nicosia said, “We’ll get you out,” and used the butt of his gun to strike his window. § 87(2)(b) confirmed this. § 87(2)(b) alleged that PO Nicosia said, “Open the fucking door,” and, “I’ll break your fucking window,” and struck the window with his gun. § 87(2)(b) indicated that PO Nicosia said he would crack the window, and struck it with his elbows and fists. There was no damage to § 87(2)(b) s vehicle.

All officers interviewed denied striking the window in any fashion, causing damage to the vehicle, or threatening to do so. Besides pointing his gun and repeatedly issuing orders, PO Nicosia denied taking any action to remove § 87(2)(b) from the vehicle.

The Police Department allows officers broad discretion to draw and point their guns if they reasonably fear for their safety. NYPD v. Gliner, OATH Index No. 955/100 (2006) (encl. [1V-AO]) Determining whether such action constitutes misconduct is made by assessing the reasonableness of the officer’s actions in the totality of the surrounding circumstances. Id. Vehicle stops are inherently dangerous situations for police officers, particularly when there are multiple occupants in the vehicle, and in consideration of this fact officers are permitted to order the driver and passengers to exit during a lawful vehicle stop. Maryland v. Wilson, 519 U.S. 408

(1997) (encl. [AP-AX]) Officers may damage property only when it is reasonably necessary to do so. Onderdonk v. New York, 170 Misc. 2d 155 (1996, Court of Claims) (encl. [1AY-BC]).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations C, D, and E** be closed as **Unsubstantiated**.

Allegation F – Discourtesy: PO Joseph Nicosia acted rudely towards § 87(2)(b)

§ 87(2)(b) alleged that PO Nicosia snatched his cell phone from his hand and flung it across the dashboard, causing small chips to its surface that he characterized as minor. § 87(2)(b) provided pictures of this damage. No other civilian corroborated this, and all officers interviewed denied doing or seeing any officer do this. § 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **Unsubstantiated**.

Allegation G – Abuse of Authority: PO Joseph Nicosia searched § 87(2)(b)

§ 87(2)(b) alleged that PO Nicosia searched his pants pockets without frisking him, removing a pair of headphones and a wallet. § 87(2)(b) corroborated this. § 87(2)(b) did not know if anyone was frisked or searched. § 87(2)(b) thought officers frisked or searched “everyone,” but could not provide further details. § 87(2)(b) denied making any furtive movements, or that the other occupants of the vehicle made any furtive movements. § 87(2)(g)

PO Nicosia acknowledged frisking § 87(2)(b) on the basis of the movements and object he observed, but denied searching him. PO Nicosia acknowledged frisking § 87(2)(b) on the basis of the movements and object he observed, but denied searching § 87(2)(b) or any of the occupants. § 87(2)(g)

§ 87(2)(g)

In a traffic stop where the police lack probable cause to arrest, the driver can only be frisked if the officers have reasonable suspicion that the suspect is armed. Arizona v. Johnson, 555 U.S. 323 (2009) (encl. [1BD-BK]) Once a frisk is conducted and any reasonable basis for fear for safety has abated, the officer cannot continue to search a suspect. People v. Williams 217 A.D. 2d 1007 (App. Div. 4th Dept. 1995) (encl. [1BL-BM])

§ 87(2)(g)

. Therefore, it is recommended that **Allegation G** be closed as **Substantiated**.

Allegation H – Abuse of Authority: SSA Gary Calhoun searched the vehicle in which

§ 87(2)(b)

and § 87(2)(b)

were occupants.

§ 87(2)(b) alleged that after he was searched at the rear of his vehicle, it was extensively searched for 25 minutes. Either PO Nicosia or PO Peralta requested a knife to pop an Ibuprofen pill out of the driver's side arm rest. § 87(2)(b) was not able to tell which officers searched which parts of the vehicle, but after the incident he saw that items that had been in the glove compartment, arm rest, and cup holders in the center console were scattered.

§ 87(2)(b) did not see officers inside the vehicle, but confirmed that officers found an Ibuprofen pill, and that items that had been in the glove compartment were removed and scattered. § 87(2)(b) knew the glove compartment, all four door pockets, the center console, the visors, and beneath the front seats of the vehicle were searched because these areas appeared to be disturbed upon his return. § 87(2)(b) saw one officer searching the front door panels and the backseats. Due to technical difficulties over the phone, and because § 87(2)(b) did not provide an in-person statement, more details could not be obtained from him.

PO Peralta acknowledged searching the vehicle for less than five minutes once all its occupants were standing at the trunk. PO Peralta looked beneath the driver seat and found a marijuana grinder. PO Peralta looked on top of the passenger and back seats, where he had seen occupants making furtive movements. PO Nicosia similarly acknowledged looking beneath the driver seat and recovering the grinder. PO Nicosia believed officers checked the "lunge-able" areas. PO Fiorello observed an unidentified officer searching underneath multiple seats of the vehicle, though she did not recall which. All denied searching closed containers, or seeing officers do so. SSA Calhoun altogether denied that a vehicle search took place in his presence.

An officer may conduct a warrantless search of a vehicle if he has probable cause to believe the vehicle contains contraband, evidence of a crime, a weapon, or means of escape. People v. Smith 949 N.Y.S.2d 474 (1996) (encl. [1BN-BO]) Absent this, it is unlawful for an officer to search a stopped vehicle when suspects have been removed and frisked without incident, as any immediate threat to safety has been eliminated. As an exception, limited search of the area where furtive movements are seen will be justified if officers reasonably suspect that a weapon in the vehicle poses a specific threat to their safety, regardless of the suspect's inability to gain immediate access to that weapon. People v. Mundo, 99 N.Y.2d 55 (2002) (encl. [1BP-BT])

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED], It

is therefore recommended that **Allegation H** be closed as **Unsubstantiated**.

§ 87(2)(g), § 87(4-b)

[REDACTED]

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____

	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date